

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 5, 2026 TIME: 8:30 A.M.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2023.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Defendant Kismat Hospitality Inc. dba Capri Motel demonstrated it served the discovery at issue on February 11, 2026. Plaintiff has not provided any responses. (Culley Declarations, ¶¶ 3-4, 7-10.) Sanctions are imposed against plaintiff in the amount of \$1,540.00 (four hours at \$325/hour plus \$240.00 in filing fees), payable no later than September 4, 2026. (Code Civ. Proc., § 2023.030.)

No. 19CV03844

MLYNAR v. CEA

INTERPLEADER CROSS-COMPLAINANTS LAW OFFICE OF JON-MARC DOBRIN, A PROFESSIONAL CORPORATION AND JON-MARC DOBRIN’S MOTION FOR LEAVE TO FILE FIRST AMENDED CROSS-COMPLAINT

As discussed below, the motion is denied.

Cross-complainants filed a verified cross-complaint on June 6, 2025, and now seek leave to file a first amended cross-complaint to add a fourth cause of action for defamation per se against plaintiff/cross-defendant Mlynar, to add proposed cross-defendant Raoul Couret to the first cause of action for declaratory relief, and to remove cross-defendants Steno Agency, Inc. dba Steno, and Jeremy Babner dba Structured Legal, from the cross-complaint. The motion is accompanied by a declaration from Dobrin and Couret. According to Dobrin’s declaration, “[t]he proposed FACC is intended to add evidence of subsequently discovered witnesses to support the allegation” that Mlynar made disparaging remarks about Dobrin and his firm to a third person that constitutes slander per se. (Decl. of Dobrin at ¶ 4.) Dobrin asserts he learned of this conduct because of a September 29, 2025, declaration authored by Couret. (Decl. of Dobrin at ¶ 5.)

Pursuant to California Rules of Court, rule 3.1324 a motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading; state which allegations in the previous pleading are proposed to be deleted, if any, and where by page, paragraph, and line number, the deleted allegations are located; and state what allegations are proposed to be added to the previous pleading, in any, and where the additional allegations are

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located by page, paragraph and line number. (Cal. Rules of Court, rule 3.1324(a).) The motion must also include a supporting declaration showing the effect of the amendments; why amendment is necessary and proper; when the facts which gave rise to the amended allegations were found; and the reason why the motion for amendment was not made sooner. (Cal. Rules of Court, rule 3.1324(b)(1)-(2).)

Here, a proposed first amended complaint is attached to Dobrin's declaration but it is not red-lined, nor is there the required identification of the additions or deletions from the prior pleading. (Cal. Rules of Court, rule 3.1324(a)(2), (3).) Further, Dobrin's declaration does not demonstrate a reasonable excuse for waiting from September 29, 2025 (the date of the Court declaration) to July 14, 2026 – approximately nine months – to file this motion, adding a new cause of action. The motion is denied.

This order is not an invitation to file a new motion, making the corrections noted above. Given the age of this case, filed 7 years ago, and the unreasonable 9-month delay in the filing of the subject motion, it is highly unlikely that the Court will seriously consider granting any further amendments to the subject cross-complaint.